

24AVCV00999 24AVCV00999

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-08-04

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Case Number: 24AVCV00999 Hearing Date: August 4, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

CITY OF LANCASTER, a charter city,

Plaintiff,

v.

LYNNE CONNER, aka LYNNE CONNER SMITH, an individual; TONY EUGENE RUMFORD, aka ANTHONY EUGENE RUMFORD, an individual; and DOES 1 through 50,

Defendants.

Case Number 24AVCV00999

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: August 4, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a nuisance abatement action. Plaintiff City of Lancaster (Plaintiff) presently moves the Court for an award of attorney's fees in costs incurred in connection with prosecuting this action.

On August 15, 2024, Plaintiff filed a complaint against Defendants Lynne Conner (Conner) and Tony Eugene Rumford (Rumford) (together Defendants), asserting three causes of action for (1) public nuisance, (2) municipal code violations, and (3) declaratory and injunctive relief.

Specifically, Plaintiff claims that Defendants owned the subject property (Property) located at 4207 West Avenue J13, City of Lancaster, County of Los Angeles, California, which is located in a residential zone, and that Defendants were unlawfully using the property to host large outside dance and pool parties with DJs, movie screens, and dozens of attendees. (Compl., ¶¶ 1, 3-4, 7, 10.) Plaintiff received numerous complaints from other residences in the area that there was incessant loud and disturbing music, porta-potties being delivered to the Property prior to the parties, loitering of attendees, smoking of marijuana and cigarettes, numerous trash bags accumulating outside the Property, and broken bottles and unbagged trash left out on the street. (Compl., ¶ 10.) Plaintiff asserted that Defendants continued to use, or allowed the use of, the Property for parties operated as a commercial enterprise in violation of the City's zoning laws. (Compl., ¶ 17.)

On August 20, 2026, the Court granted Plaintiff's ex parte application for a temporary restraining order and order to show cause (OSC) re issuance of a preliminary injunction.

On September 30, 2024, the Court granted Plaintiff's request for a preliminary injunction.

On October 2, 2024, Conner filed an answer.

On December 17, 2024, Conner filed a verified answer to the complaint.

On January 24, 2025, default was entered against Rumford.

On February 24, 2026, the Court issued its final ruling after trying the matter through declarations on agreement of Conner and Plaintiff. The Court issued a permanent injunction, ordered that Plaintiff shall have judgment in its favor on all three causes of action as against both Conner and Rumford, declared that the conditions at the Property constitute and have constituted a public nuisance pursuant to Civil Code sections 3479 and 3480 and Lancaster Municipal Code section 8.28.030, and that Plaintiff shall file within 15 days of entry of the Order any motion for its costs and attorney's fees incurred in this matter.

On March 11, 2026, Plaintiff filed the present motion for attorney's fees and costs.

On March 12, 2026, final judgment was entered, which stated in relevant part that Plaintiff is the prevailing party in this action and its entitlement to attorney's fees and costs shall be determined by way of noticed motion and memorandum of costs.

On July 15, 2026, Conner filed an opposition.

On July 28, 2026, Plaintiff filed a reply.

II. Request for Judicial Notice

Plaintiff's Request for Judicial Notice – Plaintiff requests that the Court take judicial notice of Lancaster Municipal Code, section 8.28.250. (RJN, p. 2:2-6, Ex. 1.)

California Evidence Code section 452 permits judicial notice being taken of regulations and legislative enactments issued by or under the authority of the United States or any public entity in the United States. (Evid. Code, § 452, subd. (b).) California Evidence Code section 453 mandates a court take judicial notice of a matter specified in section 452 if a party so requests, gives the adverse party sufficient notice through pleadings or otherwise, and furnishes the court with sufficient information to enable it to take judicial notice. (Evid. Code, § 453, subd. (a), (b).)

The Court finds that the Lancaster Municipal Code section 8.28.250 is judicially noticeable material, has been sufficiently identified by Plaintiff, and was served along with the present motion, providing sufficient notice to Conner through the moving papers.

Accordingly, Plaintiff's Request for Judicial Notice is GRANTED.

III. Legal Standard

Standard for Recovery of Attorney's Fees – Pursuant to Lancaster Municipal Code section 8.28.250, a prevailing party in a nuisance abatement action may be entitled to recover reasonable attorney's fees.

The lodestar method for calculating attorneys' fees applies to a statutory attorneys' fee award unless there is a clear legislative intent to the contrary. (Galbiso v. Orosi Pub. Util. Dist. (2008) 167 Cal.App.4th 1063, 1089 [citing Ketchum v. Moses (2001) 24 Cal.4th 1122, 1135-36].) Lancaster Municipal Code section 8.28.250 allows the prevailing party to recover reasonable attorneys' fees, but does not provide additional methods of calculating reasonable attorneys' fees; thus, the lodestar method is the appropriate calculation.

The lodestar method determines recoverable fees by multiplying the reasonable hourly rate of the attorneys by the reasonable number of hours billed for the work performed. "A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the careful compilation of the time spent and reasonable hourly compensation of each attorney involved in the presentation of the case." (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321 [internal quotations omitted].) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. [Citation.] The court may also consider whether the amount requested is based upon unnecessary or duplicative work." (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448 (citations omitted).) "The basis for the trial court's calculation must be the actual hours counsel has devoted to the case, less those that result from inefficient or duplicative use of time." (Horsford v. Board of Trustees Of California State University (2005) 132 Cal.App.4th 359, 395.) "The law is clear, however, that an award of attorney fees may be based on counsel's declarations, without production of detailed time records." (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375.)

In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of "fees customarily charged by that attorney and others in the community for similar work." (Bihun v. AT&T Information Systems, Inc. (1993) 13 Cal. App. 4th 976, 997 [affirming rate of \$450 per hour], overruled on other grounds by Lakin v. Watkins Associated Indus. (1993) 6 Cal. 4th 644, 664; see also Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009 ["[R]ate determinations in other cases, particularly those setting a rate for the plaintiffs' attorney, are satisfactory evidence of the prevailing market rate."].)

Standard for Recovery of Costs – California Code of Civil Procedure section 1033.5 sets forth the specific categories of costs that a prevailing party may or may not be entitled to recover as a matter of right in civil litigation.

California Code of Civil Procedure § 1033.5 provides in relevant part as follows:

“(a) The following items are allowable as costs under Section 1032:

(1) Filing, motion, and jury fees.

...

(4) Service of process by a public officer, registered process server, or other means...If service is by a process server...the recoverable cost is the amount actually incurred in effecting service, including, but not limited to, a stakeout or other means employed in locating the person to be served...

...

(14) Fees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents.

...

(b) The following items are not allowable as costs, except when expressly authorized by law:

(1) Fees of experts not ordered by the court.

(2) Investigation expenses in preparing the case for trial.

(3) Postage, telephone, and photocopying charges, except for exhibits.

(4) Costs in investigation of jurors or in preparation for voir dire.

(5) Transcripts of court proceedings not ordered by the court.

(c) An award of costs shall be subject to the following:

(1) Costs are allowable if incurred, whether or not paid.

(2) Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.

(3) Allowable costs shall be reasonable in amount.

(4) Items not mentioned in this section and items assessed upon application may be allowed or denied in the court's discretion.

...”

Generally, the Court has discretion to allow costs not listed as a recoverable category in subdivision (a) and not barred by subdivision (b). (Code Civ. Proc., § 1033.5, subd. (c)(4).)

IV. Discussion

Application – Plaintiff moves for an award of attorney's fees and costs incurred in the amount of \$71,921.93 pursuant to Lancaster Municipal Code section 8.28.250. (Notice of Motion, p. 2:5-9.) This total consists of \$67,471 in attorney's fees and \$4,450.93 in costs. (Motion, p. 4:18-20, Litvak Decl., ¶ 26.)

a. Plaintiff's Entitlement to Attorney's Fees and Costs

Plaintiff moves for attorney's fees and costs as the prevailing party in the present action pursuant to Lancaster Municipal Code section 8.28.250.

Lancaster Municipal Code section 8.28.250 states:

A. A prevailing party in any administrative, civil or equitable judicial action to abate, or cause the abatement of a public nuisance as defined in Part 1 of this chapter, or in any appeal or other judicial action arising therefrom, may recover reasonable attorney's fees in accordance with the following subsections:

1. Attorney's fees are not recoverable by any person as a prevailing party unless the city manager, or a designee thereof, or an attorney for, and on behalf of, the city, elects in writing to seek recovery of the city's attorney's fees at the initiation of that individual action or proceeding. Failure to make such an election precludes any entitlement to, or award of, attorney's fees in favor of any person or the city;

2. The city is the prevailing party when an administrative or judicial determination is made or affirmed by which a person is found to be responsible for one or more conditions or activities that constitute a public nuisance. A person is the prevailing party only when a final administrative or judicial determination completely absolves that person of responsibility for all conditions or activities that were alleged, in that action or proceeding, to constitute a public nuisance. An administrative or judicial determination that results in findings of responsibility and non-responsibility on the part of a person for conditions or activities that were alleged in that action or proceeding to constitute a public nuisance, shall nevertheless result in the city being the prevailing party.

B. Provided that the city has made an election to seek attorney's fees, an award of attorney's fees to a person shall not exceed the amount of reasonable attorney's fees incurred by the city in that action or proceeding.

In opposition, Conner argues that (1) Plaintiff has failed to establish entitlement to fees because it failed to make an election at the commencement of the action for recovery of attorney's fees in compliance with Municipal Code section 8.28.250, (2) any fee award must be reduced and apportioned to reflect that Rumford and not Conner was responsible for the conduct and litigation that generated the fees, and (3) the Court should consider Conner's limited, fixed means, disability, and caretaker status. (Opp., p. 2:25-28, 4:1-7, 6:6-15.)

Here, Plaintiff the Court finds that Plaintiff may recover its reasonable attorney's fees and costs in the underlying action. As to Conner's first argument, Plaintiff's complaint satisfies the requirement of Municipal Code section 8.28.250(A)(1), as it states multiple times: "The City hereby elects to seek recovery and is entitled to an award of the City's reasonable attorneys' fees incurred in this matter, as authorized pursuant to LMC section 8.28.250, which provides that the City may recover reasonable attorneys' fees in any action to abate or cause the abatement of a public nuisance." (Compl., ¶¶ 35, 43, p. 14:10.)

As to Conner's second and third arguments, like Plaintiff notes in its reply, the Court has already considered and rejected most of these same defenses to liability. (See Court's Ruling and Order dated 2/24/26, p. 2-3.) The Court's March 12, 2026 Order and Final Judgment for Permanent Injunction made the express finding that "as record owner of the Subject Property, Defendant Lynne Conner is legally responsible for the conditions that have existed and persisted on her property." (Judgment, ¶ 1.2.) The Court found that both "Defendants Lynne Conner and Tony Rumford have hosted, operated, permitted, allowed, leased, and/or maintained loud, chaotic, and disruptive commercial parties to occur at the Subject Property. (Judgment, ¶ 1.6.) The Court reiterated Conner's liability for the nuisance in finding that "the Subject Property has been and continues to be maintained as a public nuisance and that both Defendants Lynne Conner and Tony Rumford...are responsible for that nuisance." (Judgment, ¶ 2.1.) Furthermore, while the Court recognizes that Conner may be facing financial difficulties and insolvency, the Court declines to reduce any award of attorney's fees based on Plaintiff's financial hardship.

However, while the Court found that Conner is legally liable as the owner of the Property who was on notice of the nuisance conditions, the Court made no finding as to whether Conner should be liable for Plaintiff's attorney's fees and costs. (Court's Ruling and Order dated 2/24/26, p.4 ["the Court has not yet resolved whether Conner should be liable for City's attorneys' fees"].) Thus, the Court will consider Plaintiff's arguments that she should not be jointly liable for Plaintiff's attorney's fees and costs and that the Court should exercise its discretion and apportion the fees according to relative fault.

It is true that the general rule in California, as argued by Plaintiff on reply, is that where there are multiple non-prevailing parties, those parties are typically jointly and severally liable for an attorney's fee award. (See *Walker v. Tigor Tile Co. of California* (2012) 204 Cal.App.4th 363, 374.) However, trial courts have discretion to apportion an award for attorney's fees based upon relative culpability of the defendants, and failure to do so may constitute an abuse of discretion when a party requests equitable apportionment based on varying degrees of liability shared amongst the liable parties and the evidence supports an equitable apportionment. (*Gorman v. Tassajara Development Corp.* (2009) 178 Cal.App.4th 44, 97-98 ["California law has recognized, in different contexts, that trial courts have discretion not only in setting the amount of an award of attorney fees, but in allocating the award among various defendants based on their relative culpability. [Citations.]"]; See also *Feminist Women's Health Center v. Blythe* (1995) 32 Cal.App.4th 1641, 1672, n. 7; *El Escorial Owners' Assn. v. DLC Plastering, Inc.* (2007) 154 Cal.App.4th 1337, 1345.)

Here, the evidence supports an equitable allocation of liability for attorney's fees and costs which diverts from the general joint and several liability rule. While the Court necessarily found Conner legally liable for the nuisance and named her as a party subject to the permanent injunction, this was due to her legal ownership of the Property and the Court's finding that she had notice of the nuisance conditions. However, this does not necessarily warrant a finding of joint liability and several liability for the entirety of Plaintiff's attorney's fees. While Conner as owner of the Property shares some responsibility for the continuation of the conditions after she was on notice, Conner was not residing on the Property, did not directly cause the existence of the nuisance conditions, and the record and billing records provided by Plaintiff establish that Conner was not responsible for much of the underlying litigation in an equal capacity as Rumford.

The Defendants' respective litigation activity cannot be said to have equally contributed to Plaintiff's fees and costs. Conner's litigation activity in this case included (1) opposing Plaintiff's ex parte application for a TRO, (2) filing an answer and a subsequent verified answer, (3) agreeing to try the matter via declaration rather than a bench trial and filing one declaration in support, and (4) opposing the present motion for attorney's fees.

Rumford's litigation activity included: (1) opposing Plaintiff's ex parte application and filing numerous documents regarding his sovereign citizenship, (2) filing a motion to prove averment of jurisdiction, (3) filing a special motion to strike (anti-SLAPP) against Plaintiff, (4) filing an appeal, and (5) attempting to remove the case to federal court, then subsequently defaulting. Rumford also admits to his predominate, if not sole, liability in causing the nuisance even despite his estrangement from Conner, stating "Lynne Conner is the owner of the property and should be dismissed from this lawsuit because she is not in control of my actions and has NO Knowledge of the activities that occur in this house. Defendant Conner does not reside at the property located at 4207 W. Avenue J-13, Lancaster, CA 93536." (Rumford Decl. dated 8/30/24, ¶ 4.)

Plaintiff filed numerous declarations from members of the community in advance of the hearing of the matter via declarations, in which members of the community attribute ownership of the Property, but not fault, to Conner. For example, the declarations state, in relevant part: (1) "Mr. Rumford held a few large outdoor parties at the Subject Property...Rumford either began holding outdoor parties at the Subject Property or rented all or part of the Subject Property to third persons for them to hold parties...Rumford continued to hold these loud outdoor parties...Rumford continued to hold large parties...Rumford's conduct at the Subject Property has had a negative impact on our neighborhood...Rumford's regular, repeated, disruptive parties..." (Samaan Decl., ¶¶ 2-5, 25, 29); (2) "[The Property] is owned by Defendant Lynne Conner and is occupied by Defendant Tony Rumford...For the last three years, Mr. Rumford has held parties at the Subject Property...Mr. Rumford had a party at the Subject Property that was so loud enough that I called the police." (Fadoul Decl., ¶¶ 2-3); (3) "I am concerned that Mr. Rumford and his activities have had and will continue to have a detrimental impact on the value of our property...my quality of life, and that of my wife and our infant baby will continue to be irreparably disrupted unless the Court issues an Order commanding Mr. Rumford to comply with the law." (Botros Decl., ¶¶ 2-5, 29); (4) "Rumford held a party that went on until 1-2 am in the morning." (Hobart Decl., ¶ 4); (5) "Defendant Rumford came to the Lancaster Police Department to give me written notice that he was having a party at the Subject Property ...he was expecting 50 people." (Katz Decl., ¶ 11.)

Not a single one of these declarations speaks to any wrongdoing of Defendant Conner. While the Court named Conner as an individual subject to the permanent injunction because of her ownership of the Property, the Court finds that Conner engaged in significantly less wrongdoing than Rumford, that she did not engage in frivolous or aggressive litigation to any degree which unnecessarily increased Plaintiff's attorney's fees, and that joint apportionment for attorney's fees under these circumstances would be inherently inequitable to Conner.

The Court notes that it is unable to attribute each individual billing charge to either Conner or Rumford, as many of the billing statements are naturally vague as to what work was done as to which Defendant. There is no exact measure by which the Court can allocate the billings to one Defendant or the other. Thus, the Court assigns liability for the attorney's fees based on reasonable and appropriate degree of fault. Conner's responsibility for the attorney's fees and costs shall be limited to 25% of the total award. Rumford shall remain jointly and severally liable for the entirety of the award. ,.

Accordingly, Plaintiff, as prevailing party, may recover its reasonable attorney's fees and costs incurred in this action, and liability for said fees will be equitably allocated amongst the Defendants.

b. Reasonableness of Fees and Costs Sought

As stated above, the lodestar method is the appropriate way to calculate the reasonable attorney's fees and costs Plaintiff's counsel may recover.

i. Reasonableness of Hourly Rates

Plaintiff's counsel Dapeer, Rosenblit & Litvak, LLP (DRL) charge \$245 per hour for attorney work, regardless of attorney, and \$195 per hour for paralegal work.

Conner does not argue that any of these rates are unreasonable or should be reduced. As the issue of rate reasonableness is uncontested, the Court accepts the rates for the purposes of this motion. This ruling should not be construed by any other

court that this Court has found, after a disputed adjudication, that Plaintiff's counsel's rates are reasonable.

Accordingly, the rates requested for the billing attorneys and paralegals are accepted as requested.

ii. Reasonableness of Hours Billed

Plaintiff's counsel argues it reasonably spent 291.3 hours on this case and provides detailed billing records in support of its request. (Motion, p. 3:19; Litvak Decl., Ex. A.)

Where a party submits detailed billing records, they "are entitled to credence in the absence of a clear indication the records are erroneous." (Horsford, *supra*, 132 Cal.App.4th at p. 396.) On presentation of a detailed fee bill, accompanied by a sworn affidavit as to the accuracy of the fee bill, the bill is presumed credible, and the court must use these records as a starting point for its lodestar determination. (*Id* at 396-97.)

Pre-litigation attorney's fees are recoverable where the activity contributed to the success of the litigation. (See *Hogar v. Community Development Comm. of City of Escondido* (2007) 157 Cal.App.4th 1358, 1370 [allowing pre-litigation fees under Civil Code section 1021.5 because the activity directly contributed to the litigation].)

In opposition, Conner argues the fee request contains numerous inconsistencies in the fees requested, the billing statements provided are block-billed, vaguely coded as "City Civil/Appeals", the matter was overstaffed, and the work billed for includes work unrelated to the nuisance claim at issue. (Opp., p. 7:1-5, 8:7-12, 8:17-21, 9:5-11.)

Here, Plaintiff submits detailed billing records detailing the time spent on various tasks throughout the commencement of the present action. (Litvak Decl., Ex. A.) While Conner generally objects as to the coding of these entries or the number of timekeepers on the matter, Conner does not point to a single duplicative entry. The Court also notes that despite the coding of the entries, the individual entries are seemingly appropriately redacted pursuant to attorney-client and work-product privilege, and the Court can still discern with reasonable specificity the general nature of the work to determine whether the entries are reasonable. The Court also acknowledges Conner's objection to the billing entries related to review of the documents in her dissolution case. However, the Court does not find that this work is facially unreasonable, as property is often divided or sold amidst separation or divorce, which would likely be reflected in the Court's docket. Furthermore, the Court notes the inconsistencies in the amount of fees and costs requested in the moving documents, but Litvak clarifies that his original declaration in support of the motion contains a clerical error, and confirms the total requested amount is \$71,921.93, which is what is requested in the Notice of Motion. (Litvak Reply Decl., ¶ 10.) Accordingly, the Court will start with Plaintiff's request for \$67,471 in its lodestar calculation.

Here, absent any evidence to the contrary, the Court finds most of Plaintiff's billing reasonable.

However, the Court notes regular billing pertaining to the federal case, amounting to 9.9 hours of work after the date the case was removed and remanded, totaling \$2,227.50. These fees are not recoverable in this action and are stricken in their entirety.

Further, while calendaring dates, properly recording and saving client files and Court documents, and coordinating appearances by counsel are important and necessary tasks in litigation, these tasks are secretarial in nature and do not warrant attorney, or even paralegal, billing. As the United States Supreme Court has held: "Of course, purely clerical or secretarial tasks should not be billed at a paralegal rate, regardless of who performs them. What the court in *Johnson v. Georgia Highway Express, Inc.*, 488 F. 2d 714, 717 (1974), said in regard to the work of attorneys is applicable by analogy to paralegals: 'It is appropriate to distinguish between legal work, in the strict sense, and investigation, clerical work, compilation of facts and statistics and other work which can often be accomplished by non-lawyers but which a lawyer may do because he has no other help available. Such non-legal work may command a lesser rate. Its dollar value is not enhanced just because a lawyer does it.'" (*Missouri v. Jenkins* (1989) 491 U.S. 274, 288 n.10.) Thus, while the Court finds the time spent on

this task to be reasonable absent evidence to the contrary, billing these tasks as attorney or paralegal fees is unwarranted.

Therefore, the Court strikes 2.4 hours of work, totaling \$376.00, for calendaring deadlines throughout the case.

Accordingly, Plaintiff is awarded reasonable attorney's fees in the amount of \$64,867.50 for approximately 279 hours of work.

iii. Reasonableness of Costs

Plaintiff states it seeks a total of \$4,450.93 in costs, consisting of obtaining documents, filing fees, service of process efforts, WestLaw and LexisNexis access, DataTree access, photocopies, postage, and Pacer data charges. (Litvak Decl., ¶ 26, Ex. 1; Litvak Reply Decl., ¶ 11, Ex. A.) Plaintiff's Memorandum of Costs seeks only a total of \$2,480.84 for filing and motion fees (\$293.94) and service of process (\$2,186.90).

"A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case." (Cal. Rules of Court, rule 3.1700(a)(1).)

Here, Plaintiff has provided a verified memorandum of costs detailing the nature of the costs incurred and the total amount requested. (Cost Memo., p. 1.) None of the costs requested appear facially invalid and Conner has provided no evidence contradicting the reasonableness or necessity of the filing and service costs. However, as Conner points out, the additional costs sought as detailed in Plaintiff's billing records are not included on the Memorandum of Costs and are not recoverable, including postage, investigatory efforts, obtaining documentation, photocopies, and research fees. (Code Civ. Proc., § 1033.5, subd. (b).)

Plaintiff's request for costs is GRANTED in the reduced amount of \$2,480.84 as requested on the Memorandum of Costs.

Accordingly, Plaintiff's request for fees and costs is GRANTED in the total amount of \$67,348.34.

V. Conclusion

Plaintiff City of Lancaster's Motion for Attorney's Fees and Costs is GRANTED in the amount of \$67,348.34.

Defendant Lynne Conner's liability is capped at 25% of the total award, amounting to \$16,837.0983

Defendant Tony Eugene Rumford is jointly and severally liable for the entirety of the \$67,348.34.